

PETITION - RETROACTIVE FIRST OFFENDER TREATMENT, EXONERATION AND DISCHARGE
UNDER Sec. 42-8-66

[C2 - court of conviction] Court and county in which the conviction was entered:

.....

STATE OF GEORGIA

STATE OF GEORGIA,

v.

Maria-Alejandra O'Shaughnessy-Whitfield, DEFENDANT/PETITIONER.

Original criminal case number:

.....

A. THE CONTROLLING ROUTE AND ITS GATE

This is the participant-filed petition for retroactive First Offender treatment, exoneration and discharge under O.C.G.A. Sec. 42-8-66. It is filed in the court in which the conviction was entered, in the original criminal matter unless the receiving clerk requires an ancillary number.

Written prosecutorial consent is required BEFORE the individual files. Consent is a prerequisite, not the final relief. A phone call, an unanswered request, prosecutor silence or 'no known objection' is not written consent.

[C1 - required written consent document] The verified written prosecutorial consent, joinder or signed consent endorsement is attached:

.....

B. THE PETITIONER AND ORIGINAL MATTER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

[C3 - original matter record] What are the original judgment, sentence and disposition?

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C. THE FACTS REQUIRED BY THE COMMITTED ROUTE RECORD

Fill every item from verified records. If an answer is uncertain, stop and get legal help instead of filing.

[C4 - original eligibility] Was the petitioner eligible for First Offender treatment at the time?

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.....

[C5 - statutory branch] Which Sec. 42-8-66 branch applies?

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.....

[C6 - prior history] Is there any prior felony or prior First Offender history?

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.....

[C7 - prior qualifying order] Has a qualifying order already been granted, and on what date?

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.....

D. REQUEST FOR RELIEF

After the required written consent, the petitioner asks this Court to decide whether the statutory eligibility and interests-of-justice showing has been made and to grant retroactive First Offender treatment, exoneration and discharge under O.C.G.A. Sec. 42-8-66.

The petitioner understands that a hearing is held if the petitioner or prosecutor requests one, or if the Court wants one.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:runtime-only:GA:youthful-first-offender-restriction-route

FILING INSTRUCTIONS - GEORGIA Sec. 42-8-66 RETROACTIVE FIRST OFFENDER PETITION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

THE REQUIRED GATE

Written prosecutorial consent is required BEFORE filing. The document must be verified written consent, joinder or a signed consent endorsement held as a document. A phone call, an unanswered request, prosecutor silence or 'no known objection' does not satisfy the gate.

THE THREE CONTROLLING ROUTE OPTIONS

1. CONSENT PRESENT, AND NO QUALIFYING ORDER ALREADY GRANTED: after verified written prosecutorial consent exists, the participant files the Sec. 42-8-66 petition in the court of conviction. The court independently decides the statutory eligibility and interests-of-justice showing.
2. CONSENT ABSENT OR DISPUTED: do not generate or file the petition. Use an attorney or prosecutor handoff. Refusal, silence, an unanswered request and 'no known objection' are not consent; withdrawn consent defeats the filing.
3. QUALIFYING ORDER ALREADY GRANTED ON OR AFTER JULY 1, 2026: do not generate a second merits or sealing petition. The route moves to restriction, sealing, agency distribution and verification tracking.

WHAT THE COMMITTED ROUTE RECORD SAYS THE PACKET SHOULD INCLUDE

- petition for retroactive First Offender treatment, exoneration and discharge;
- written prosecutor consent, joinder or signed consent endorsement;
- proposed order;
- hearing-request election;
- certificate of service or local notice document;
- judgment, sentence and disposition records;
- evidence of original First Offender eligibility;
- evidence supporting the applicable Sec. 42-8-66 branch;
- rehabilitation and interests-of-justice exhibits; and
- post-order restriction, sealing and verification instructions.

WHERE TO FILE

File in the court of conviction. Use the original criminal matter and preserve its original caption and case number unless the receiving clerk requires an ancillary number.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

O.C.G.A. Sec. 42-8-66 imposes no filing fee; no fee waiver is needed.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

The committed route record calls for a certificate of service or local notice document but does not state a universal recipient or method. Confirm the local notice and service requirement with the clerk of the court of conviction before filing; do not guess.

WHEN TO STOP AND GET HELP INSTEAD

- written consent is absent or disputed;
- original First Offender eligibility is uncertain;
- prior felony or First Offender history is unclear;
- the prosecutor withdraws consent;
- the court requires a contested evidentiary hearing; or
- immigration, firearm, federal or licensing consequences require advice.

Route: obligation:runtime-only:GA:youthful-first-offender-restriction-route